355 Attachment 3

Town of North Castle

§ 355-23. Schedule of Office and Industrial District Regulations (Part 1)

[Amended 4-22-1993 by L.L. No. 2-1993; 9-23-1993 by L.L. No. 8-1993; 7-6-1995 by L.L. No. 4-1995; 8-16-2006 by L.L. No. 14-2006; 12-13-2006 by L.L. No. 30-2006; 6-10-2008 by L.L. No. 10-2008; 10-6-2009 by L.L. No. 12-2009; 11-9-2009 by L.L. No. 13-2009; 6-25-2014 by L.L. No. 2-2014]

Schedule of Office and Industrial District Regulations (Part 1)

NOTES:

Where any part of a nonresidential building is to be used for residence purposes, it shall meet all the requirements for a residence building, where such requirements are higher.

(a) On lots abutting a turnaround on a dead-end street, the Planning Board may permit the frontage to be reduced, where applicable, to not less than 100 feet.
(b) See § 355-15 for special yard provisions.
(c) Gasoline pumps shall not be located nearer than 15 feet to a lot line.
(d) Where access to required parking space in the rear is through a side yard, such side yard shall be determined by the Planning Board, but in no case to be less than 16 feet.
(e) Where a side line of a lot abuts the rear line of another lot, such side yard shall be at least equal to the required rear yard or such other lot.
(f) See § 355-15E for special height provisions.
(g) Where a lot abuts a residence district, the yard shall measure at least 50 feet.
(h) Where a lot abuts a residence district, the required side yard shall be the same as that required in said residence district, but in no case less than as required elsewhere in this chapter.
(i) (Reserved)
(j) (Reserved)
(k) See § 355-29E(1) for existing lots of less than minimum required size.
(l) (Reserved)
(m) Except that the Planning Board may approve one or more lots of at least two acres each and 200 feet of frontage and depth, as part of a subdivision whose lots average four acres each in area.
(n) Except that any lot of at least one acre, wholly within the Town of North Castle, existing on April 27, 1981, may be used, provided that it meets other standards.
(o) These requirements may be varied or reduced in connection with approval of the site plan by the Planning Board, where the size and/or shape of existing lots may warrant or require it.
(p) Where a rear line of a lot abuts lands dedicated for park use, such minimum setback may be reduced to 50 feet.
(q) Where the rear line of a lot abuts land utilized for rail transportation purposes, such minimum setback may be reduced or eliminated at the discretion of the Planning Board.